

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                                            |                                                                                                                                                                                                            |
|---------------------------------------------------|-------------------------------------|--------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Colin Gardner                    | Team:<br>Squad #06                  | CCRB Case #:<br>201608892                  | <input type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 02/05/2016 5:20 AM    | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>8/5/2017                     | Precinct:<br>49                                                                                                                                                                                            |
| Date/Time CV Reported<br>Mon, 10/24/2016 11:58 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Mon, 10/24/2016 11:58 AM                                                                                                                                                     |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. DT3 Matthew Wright | 1567   | 940872 | WARRSEC |
| 2. DT2 Robert Graves  | 04588  | 945352 | WARRSEC |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. DT3 Matthew Murphy | 03752     | 930804 | WARRSEC  |

| Officer(s)             | Allegation                                                               | Investigator Recommendation |
|------------------------|--------------------------------------------------------------------------|-----------------------------|
| A . DT2 Robert Graves  | Abuse: Det. Robert Graves entered and searched § 87(2)(b) in the Bronx.  | A . Unsubstantiated         |
| B . DT3 Matthew Wright | Abuse: Det. Matthew Wright entered and searched § 87(2)(b) in the Bronx. | B . Unsubstantiated         |

### Case Summary

On October 24, 2016, § 87(2)(b) filed this complaint via the CCRB call processing system.

On February 5, 2016, at approximately 7:30 a.m., Det. Robert Graves, Det. Matthew Wright, and Det. Matthew Murphy from the Manhattan Warrant Section knocked on § 87(2)(b)'s front door located at § 87(2)(b). § 87(2)(b) opened the front door of his apartment and Det. Graves asked § 87(2)(b) to step outside into the hallway. § 87(2)(b) complied, and then the detectives informed § 87(2)(b) that he was under arrest. § 87(2)(b) told the detectives that his identification was back inside of his apartment, so Det. Graves and Det. Wright entered § 87(2)(b)'s apartment to retrieve it for him (**Allegations A and B**). § 87(2)(b) was taken to a police stationhouse in Manhattan and he was ultimately arrested for a crime that he committed approximately one week prior to this incident (**see Board Review 2**).

No video footage was obtained for this incident.

### Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the arrest and no DAT being issued.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**see Board Review 6**).

### Civilian and Officer CCRB Histories

- This was the first CCRB complaint filed by § 87(2)(b) (**see Board Review 5**).
- Det. Graves has been a member of the service for 30 years and there have been 7 prior allegations in 3 complaints made against him. In CCRB case # 201302991, an entry allegation was substantiated against Det. Graves. The Board recommended instructions, but the NYPD issued no discipline. In CCRB case # 201411847, an entry, a search, and a detained allegation were all substantiated against Det. Graves. The Board recommended charges, and the NYPD has not ruled on the case as of January 26, 2017.
- Det. Wright has been a member of the service for 11 years and there have been 20 prior allegations in 7 complaints made against him. In CCRB case # 201411847, an entry, a search, and a detained allegation were all substantiated against Det. Graves. The Board recommended charges, and the NYPD has not ruled on the case as of January 26, 2017.

### Findings and Recommendations

#### Explanation of Subject Officer Identification

According to § 87(2)(b)'s testimony, the officer with the most stocky build and dirty blonde hair waited outside with him in the hallway and did not enter his apartment while two other detectives entered his residence to search for his wallet. Each officer is a white male and stands at either 5'9" or 5'10" in height and Det. Murphy is the heaviest officer by 20 pounds. However, based on the officers' pedigree information, Det. Murphy has the stockiest build and has salt and pepper

hair. Det. Graves has black hair and Det. Wright has brown hair. Since Det. Murphy matches § 87(2)(b)'s description of the officer that did not enter his apartment the closest, § 87(2)(g)

### **Allegations Not Pleaded**

- § 87(2)(g)

**Allegation A – Abuse of Authority: Det. Robert Graves entered and searched § 87(2)(b) in the Bronx.**

**Allegation B – Abuse of Authority: Det. Matthew Wright entered and searched § 87(2)(b) in the Bronx.**

§ 87(2)(b) stated that he walked to his bedroom window after he heard his intercom buzzing and saw a van parked in the middle of the street. § 87(2)(b) ignored the buzzing intercom and heard loud banging on the front door to his apartment a few minutes later. § 87(2)(b) walked over to his front door and looked out of his peephole and saw Det. Robert Graves, Det. Matthew Wright, and Det. Matthew Murphy standing on the other side of it. § 87(2)(b) did not want to be bothered by the officers, so he went back into his bed. Soon after, § 87(2)(b) heard the officers banging loudly on his door for approximately five more minutes. § 87(2)(b) eventually walked over to the entrance of his apartment and opened his door for them. § 87(2)(b) provided his name and one of the officers asked § 87(2)(b) if he would step outside of his apartment into the hallway. § 87(2)(b) complied with the request. The officers then informed § 87(2)(b) that he was under arrest and told him to place his hands behind his back. § 87(2)(b) complied with the officers' request and then he was handcuffed. Det. Graves then asked § 87(2)(b) for his identification and § 87(2)(b) informed him that his identification was inside one of his pairs of pants back inside of his apartment. § 87(2)(b) offered to go inside of his apartment to retrieve the pair of pants where his wallet and identification were, and Det. Graves responded, "No, you wait outside. We'll go in to get it." § 87(2)(b) remained handcuffed out in the hallway with Det. Murphy while the Det. Graves and Det. Wright entered his apartment to look for his identification. The officers looked inside of § 87(2)(b)'s apartment for approximately three to four minutes for his identification before they exited the apartment with § 87(2)(b)'s wallet and identification. Det. Graves and Det. Wright did not ask § 87(2)(b) for permission to enter his apartment and § 87(2)(b) did not provide them with verbal consent to enter the apartment during this incident. After the officers located § 87(2)(b)'s identification, they informed him that there is a warrant out for his arrest. § 87(2)(b) was escorted outside where he was taken to PO Gonzalez, his arresting officer, who was waiting at a police stationhouse in Manhattan (see **Board Review 1**).

During § 87(2)(b)'s phone statement, he said that PO Gonzalez from Manhattan Robbery Squad was present at his residence when he was apprehended. § 87(2)(b) also stated that he believed officers were looking for guns or weapons when they entered and searched his residence and he did not mention them searching for his wallet to retrieve his identification (see **Board Review 14**).

Det. Graves, Det. Wright, and Det. Murphy did not have any recollection of this incident other than their memo book entries that placed them at the scene (see Board Review 11, 12, and 13). None of the officers that were involved with § 87(2)(b)'s arrest could recall if they entered § 87(2)(b)'s apartment on the date of the incident or recall interacting with § 87(2)(b) (see Board Review 8, 9, and 10).

The Fourth Amendment, made applicable to the States by the Fourteenth Amendment, prohibits the police from making a warrantless and nonconsensual entry into a suspect's home in order to make a routine felony arrest. Payton v. New York, 445 U.S. 573 (1980) (see Board Review 15).

Consent is voluntary when it is “a true act of will, an unequivocal product of an essentially free and unconstrained choice.” Voluntariness is incompatible with “official coercion, actual or implicit, overt or subtle.” “Where there is coercion there cannot be consent.” People v. Gonzalez, 39 N.Y.2d 122 (1976) (see Board Review 16).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

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Squad:

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

